



File No: EXP202300689

RESOLUTION OF RIGHTS PROCEDURE

Following the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: Mr. A.A.A. (hereinafter, the claimant), after receiving several emails from XFERA MÓVILES, S.A. (hereinafter, the respondent, or Yoigo) dated May 2, 2020, requested to stop receiving them, to which the respondent replied that "(...) if you are currently a Yoigo customer, I need you to confirm your full name and ID number; with that information, I can request the cessation of sending commercial information. If you have been a customer in the past or have never been one, you must send us the form you can find on the data protection agency's website requesting the deletion of your personal data, along with this form you must attach your ID on both sides. If you do not do what we have asked, we are sorry but we cannot help you."

The claimant sent the requested documentation and data to the respondent, indicating that he is not a customer of the entity.

On May 5, 2020, the respondent replied that "We inform you that we have proceeded to request the deletion of the indicated line from our advertising databases. We remind you that this process is completed within a period of 7-10 days, so it is possible that during this period you will continue to receive calls."

On March 3, 2021, and January 13, 2023, he received emails from the respondent again.

The claimant has provided the different emails.

SECOND: In accordance with Article 65.4 of the LOPDGDD, this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

Yoigo states that the claimant is their customer and that the last email "(...) This communication has been sent according to your privacy preferences as recorded in our systems.

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As can be seen, the interested party has modified his privacy preferences several times until 2019, with no modifications recorded since then. In particular, the interested party had accepted all his consents."

"In consideration of what the interested party has stated in this complaint, we have proceeded to revoke all the consents he had, as well as to mark the opposition to the sending of communications regarding products or services similar to those contracted (...)"

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow understanding the claims of the claimant to be satisfied. Consequently, on April 18, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing after the established period of three months had elapsed.

Once the information contained in the respondent's response to this Agency was analyzed, it was found that there may have been an error, as the claimant's name is A.A.A., while the actions carried out by the respondent appear to have been in relation to a customer with a similar name, named B.B.B., for whom the data has been deleted and not for the claimant.

The aforementioned agreement granted the respondent a hearing procedure, so that within a period of fifteen working days, they could present any allegations they deemed appropriate, indicating that this Spanish Agency for Data Protection did not provide the full name of the claimant, only the email address where the messages are received, which led to the error.

"When analyzing the initial complaint, we carried it out based on the email address provided, ***EMAIL.1, as it pertains to emails directed to customers. This led us to confirm that the holder of this email address belongs to our customer of the Yoigo brand, Mr. B.B.B. This address was provided in the context of the customer's contracting, by himself, who provided us with this email address in the context of his service contract with us, which is why we sent him the information regarding the appointment for installation and the rest of the communications.

Having no knowledge of more information than the name and first surname of the claimant, by deducing them from the only data that has been provided to us in the context of this file for its attention, we have taken the actions indicated in our first response regarding the data of the only (...) of whose existence we are aware.

Based on what has been discovered in the context of the present allegations, we will proceed to contact Mr. B.B.B. in order to rectify the data of his email address as it has been found to be inaccurate."

FOURTH: After examining the document submitted by the respondent, it is forwarded to the claimant, so that, within a period of fifteen working days, they may formulate any allegations they consider appropriate, indicating, in summary, that

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"Regarding the alleged confusion between two emails, one mine and the other belonging to the supposed Mr. B.B.B. (or (...), since the second surname of this supposed person is not clear in the written allegations, as the company uses both surnames), we again encounter an unreal fact on the part of the company XFERA MOVILES, S.A., since it is IMPOSSIBLE for the same email address to exist for two different users. Simply put, email servers prevent this, precisely to avoid confusion between the holders of these email addresses. Considering that this email address is owned by me, as it is the one I currently use, along with the fact that the company XFERA MOVILES, S.A. does not justify that Mr. B.B.B. (or (...)) indicated my email address as if it were his reference, we can deduce that the truth is that the company XFERA MOVILES, S.A. has violated my right to the deletion of my personal data from its databases."

"(...) the argument put forth by the company regarding the ownership of my email address lacks any argumentative support. This is because on January 18, 2023, I myself warned said company that I had filed the corresponding complaint with this Agency, so it makes no sense for them to refer to the supposed error in my data and that of the supposed Mr. B.B.B. (or (...))."

The claimant has provided a copy of the email sent on January 18, 2023, reminding them that at that time they had already confirmed the deletion of their data from all their lists.

"However, in April of this same year, they sent me advertising emails again, and after reiterating my total disagreement with this way of proceeding, on April 12, 2023, they acknowledged their error, without citing a supposed data crossover between Mr. B.B.B. (or (...)) and myself."

Attached is the email received from the company, "(...) we sincerely apologize for the inconvenience caused, we inform you that the error has been resolved, so you will not receive any more commercial communications from us."

FIFTH: After granting a hearing to the responding party, they state that

"The data processing carried out for clients and non-clients is distinct and independent, with no cross-referencing of databases, and the data subject to each processing has completely independent purposes, legal bases, life cycles, and processes. For this reason, a data on which the right of opposition is exercised as a non-client can be processed if provided by a client within the framework of a contractual relationship with us.

In the case at hand, Mr. A.A.A.'s right was correctly addressed since his email address was included in the exclusion files, following the procedures corresponding to non-clients.

In the case of Mr. B.B.B., whose data is processed as a client, the inaccuracy of the email address that

was provided during the contracting process was not detected until Mr. A.A.A.'s complaint was admitted for processing and all elements were provided to deduce the mentioned inaccuracy, as at no time has Mr. B.B.B. expressed any problem with that data.

(...) We also want to clarify that there has been no data crossover in this case, but rather it was our client, Mr. B.B.B., who provided us with the disputed data within the framework of his contract, presuming it to be accurate.

(...) We inform this Agency that, since the allegations were admitted for processing, we have managed to contact Mr. B.B.B. and update his data. Our diligence is more than evidenced."

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its implementing rules shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and the promotion of awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by an interested party and investigating the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in

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the performance of their functions. In the event that they have appointed a data protection officer, Article 39 of the GDPR assigns to this officer the function of cooperating with the authority.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, the complaint was forwarded to the respondent party for analysis, requiring them to respond to this Agency within one month and to provide evidence of having given the complainant the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR. The result of this forwarding did not allow for the understanding that the claims of the complainant were satisfied. Consequently, on April 18, 2023, for the purposes provided in Article 64.2 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing. This admission agreement determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint accepted."

It is not deemed appropriate to clarify administrative responsibilities within the framework of a sanctioning procedure, whose exceptional nature implies that, whenever possible, preference should

be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure the guarantees and rights of the complainant are duly restored.

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to portability are contemplated.

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The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must express its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right to Object

Article 21 of the GDPR, relating to the right to object, establishes the following:

"1. The data subject shall have the right to object at any time, on grounds relating to their particular situation, to the processing of personal data concerning them which is based on Article 6(1)(e) or (f), including profiling based on those provisions. The data controller shall cease processing the personal data unless it demonstrates compelling legitimate grounds for the processing which override the interests, rights, and freedoms of the data subject, or for the establishment, exercise, or defense of legal claims.

2. Where the processing of personal data is for direct marketing purposes, the data subject shall have the right to object at any time to the processing of personal data concerning them, including profiling to the extent that it is related to such marketing.

3. When the data subject objects to processing for direct marketing purposes, the personal data shall no longer be processed for such purposes.

4. At the latest at the time of the first communication with the data subject, the rights referred to in paragraphs 1 and 2 shall be explicitly mentioned to the data subject and shall be presented clearly and separately from any other information.

5. In the context of the use of information society services, and notwithstanding the provisions of Directive 2002/58/EC, the data subject may exercise their right to object by automated means using technical specifications.

6. When personal data are processed for scientific or historical research purposes or for statistical purposes in accordance with Article 89(1), the data subject shall have the right, on grounds relating to their particular situation, to object to the processing of personal data concerning them, unless the

processing is necessary for the performance of a task carried out for reasons of public interest."

V

Conclusion

In the case analyzed here, from the examination of the documentation provided, and as far as this procedure is concerned, it has been established that the complainant requested the right to object to the processing of their data for advertising purposes, and that, despite the fact that the respondent informed them that their right was being respected, they continued to receive promotional emails. During the processing of this procedure, the respondent has verified that the complainant's email address was associated with another person who is a client of the entity, and therefore, has proceeded to modify that client's address.

The respondent has sent an email to the complainant informing them that "(...) the error has been resolved, so you will no longer receive any commercial communications from us."

Therefore, considering that the purpose of this procedure is to ensure that the guarantees and rights of the affected parties are duly restored, combining the information in the file with the regulations referred to in the preceding sections, it is appropriate to uphold the present complaint on formal grounds due to the late issuance of the response, without requiring additional actions by the data controller to issue a new certification regarding the attention to the right.

In view of the cited provisions and other generally applicable regulations, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO UPHOLD on formal grounds, the complaint filed by Mr. A.A.A. against XFERA MÓVILES, S.A. However, it is not appropriate to issue a new certification by the respondent, as the response was issued late, without requiring additional actions by the data controller.

SECOND: TO NOTIFY this resolution to Mr. A.A.A. and to XFERA MÓVILES, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions established in Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution, or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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